

## CHAPTER - 5

# Union Executive

### The President

**Article 52** – There shall be a President of India.

**Article 53** – The executive power of the Union shall be vested in the President.

### Thus the President is:

- (1) Executive head of the Republic.
- (2) All the executive actions are taken in his name. The executive power vested in the President is to be exercised on the aid & advice of the Council of Ministers [Article 74(1)]. It is obligatory on the part of President to accept the advice of the council of ministers as per the 42nd and 44th Constitutional Amendment Acts.
- (3) He is the first citizen of India & occupies the first position under the warrant of precedence. Warrant of Precedence indicates the hierarchy of positions occupied by various dignitaries attending a state function.
- (4) He is the Supreme Commander of Armed Forces.

### Election of the President

The President of India is elected by indirect election. He is elected by an electoral college in accordance with the system of proportional representation by means of the single transferable vote & the vote being secret.

### Article 54 –

#### The Electoral College consists of:

- (a) The elected members of both houses of Parliament (nominated members are not the members of electoral college)
- (b) The elected members of the Legislative Assemblies of the States (including National Capital Territory of Delhi & the Union Territory of Puducherry)

### Manner of Election of the President

The provisions dealing with the manner of election of the President of India are provided in Article 55. He is elected following the system of proportional representation by means of single transferable vote.

Article 62 of the Constitution provides that an election to fill a vacancy shall be held as soon as possible after & in no case later than six months from, the date of occurrence of the vacancy (if such occurrence of vacancy is caused by resignation or death or impeachment or otherwise).

### Qualification for election as President

- (a) He must be a citizen of India.
- (b) He must have completed the age of 35 years.
- (c) He must be qualified for election as a Member of the House of the People.
- (d) He must not hold any office of Profit under the Govt. of India or the Govt. of any State or under any local or other authority subject to the control of any of the said Govt. However, following persons are not deemed to be holding any office of profit & hence they cannot be disqualified for election as the President. A sitting President or Vice-President of India/Governor of any state/A minister of the Union or of any State.

### Eligibility for re-election

A person, who holds or who has held office as President shall be eligible for re-election to that office.

### Impeachment of the President (Article 61)

- (1) The President can be removed from his office before the expiry of his term by the process of impeachment.
- (2) The President can be impeached only for the violation of the Constitution.
- (3) It is a quasi-judicial procedure.
- (4) The impeachment procedure can be initiated in either House of the Parliament. The resolution must be signed by at least 1/4th of the total membership of the House. Before the resolution could be passed, a 14-day notice must be given to the President. Such a Resolution must be passed by a majority of not less than 2/3rd of the total membership of the House.



- (5) Then, the other House of Parliament called the "Investigating House" investigates the charges by itself or cause the charge to be investigated.
- (6) The President has the right to appear & to be represented at such investigation to defend him.
- (7) If, as a result of the investigation the other House also passes a resolution supported by not less than 2/3rd of the total membership of House, the President stands removed from his office from the date on which the investigating House passed the resolution.

**Note:**

(a) The elected members of the legislative assemblies of States have no role in the impeachment proceedings, while they elect the President. (b) The nominated members of the Parliament have the right to deliberate & vote when the resolution of impeachment is under consideration while they have no vote in the election of the President.

**Vacancy filled up with Acting President**

- (1) In case the office of the President falls vacant due to death, resignation or impeachment the Vice-President or in his absent. Chief Justice of Supreme Court or on his absence, senior most Judge of the Supreme Court becomes President till the fresh election for the Post & new incumbent assumes office.
- (2) If the President is not able to discharge his duties due to sickness or absence due to any other reasons, the Vice-President discharges the functions of the President & is entitled to the same salary, allowances & privileges which are available to the President under the constitution.

**Legislative powers of President**

**The legislative Powers of President are as follows:**

1. The President summons both the Houses of the Parliament & prorogues them. He or she can dissolve the Lok Sabha according to the advice of the Council of Ministers headed by the Prime Minister.
2. President inaugurates the Parliament by addressing it after the general elections & also at the beginning of the first session each year.
3. All bills passed by the Parliament can become laws only after receiving the assent of the President. The

President can return a bill to the Parliament, if it is not a money bill or a constitutional amendment bill, for reconsideration. When after reconsideration, the bill is passed & presented to the President, with or without amendments; President is obliged to assent to it.

4. The President can also withhold his assent to the bill thereby exercising pocket veto.
5. When both Houses of the Parliament are not in session & if Government feels the need for immediate action, President can promulgate ordinances which have the same force & effect as laws passed by Parliament.

**Executive powers of President**

The executive powers of President are as follows:

1. The President appoints the PM, the President then appoints the other members of the Council of Ministers, distributing portfolios to them on the advice of the PM.  
The President is responsible for making a wide variety of appointments. These include:  
**Governors of States/The Chief Justice, other judges of the Supreme Court & High Courts of India/The Attorney General/The Comptroller & Auditor General/The Chief Election Commissioner & other Election Commissioners/The Chairman & other Members of the Union Public Service Commission/ Ambassadors & High Commissioners to other countries.**
3. The President is the Commander in Chief of the Indian Armed Forces.

**Financial powers of President**

1. All money bills originate in Parliament, but only if the President recommends it.
2. He or she causes the Annual Budget & supplementary Budget before Parliament.
3. The President appoints a finance commission every five years.

**Judicial powers of President**

1. The president appoints the Chief Justice of the Union Judiciary & other judges on the advice of the Chief Justice.
2. The President dismisses the judges if & only if the two Houses of the Parliament pass resolutions to that effect by two-thirds majority of the members present.



3. He/she has the right to grant pardon. The President can suspend, remit or commute the death sentence of any person.

**Pardon** - completely absolves the offender

**Reprieve** - temporary suspension of the sentence

**Commutation** - substitution of one form a punishment for another form which is of a lighter character

**Respite** - awarding a lesser sentence on special ground

**Remission** - reducing the amount of sentence without changing its character

### **Diplomatic powers of President**

All international treaties & agreements are negotiated & concluded on behalf of the President. However, in practice, such negotiations are usually carried out by the PM along with his Cabinet (especially the Foreign Minister).

### **Military powers of President**

The President is the supreme commander of the defense forces of India. The President can declare war or conclude peace, subject to the approval of parliament. All important treaties & contracts are made in president's name.

### **Emergency powers of President**

The President can declare three types of emergencies: national, state & financial. Under Article 352, 356 & 360.

### **Vice President of India**

The Vice-President is elected by an electoral college consisting of members of both Houses of Parliament, in accordance with the system of proportional representation by means of the single transferable vote & the voting in such election is by secret ballot. The Electoral College to elect a person to the office of the Vice-President consists of all members of both Houses of Parliament. He is ex-officio chairman of Rajya Sabha.

The Vice-President should not be a member of either House of Parliament or of a House of a Legislature of any state. If a member of either House of Parliament or of a House of a Legislature of any state is elected as Vice-President, he is deemed to have vacated his seat in that House on the date he/she enters his office as Vice-President.

A person cannot be elected as Vice-President unless she/he-

- is a citizen of India has completed the age of 35 years.
- is qualified for election as a member of the Council of States (Rajya Sabha).
- Holds any office of profit under the Government of India or a State Government or any subordinate local authority.

### **Removal of Vice President**

The Constitution states that the Vice President can be removed by a resolution of the Rajya Sabha passed by an absolute majority (more than 50% of total membership) & agreed to by a simple majority (50% of voting members) of the Lok Sabha [Article 67(a)].

### **Powers & functions of a Vice President**

**The functions of Vice-President are two fold:**

1. He acts as the ex-officio Chairman of Rajya Sabha. In this capacity, his powers & functions are similar to those of the Speaker of Lok Sabha.
2. He acts as President when a vacancy occurs in the office of the President due to his resignation, removal, death or otherwise. He can act as President only for a maximum period of six months, within which a new President has to be elected. Further, when the sitting President is unable to discharge his functions due to absence, illness or any other cause, the Vice-President discharges his functions until the President resumes his office.

While acting as President or discharging the functions of President, the Vice-President does not perform the duties of the office of the chairman of Rajya Sabha. During this period, those duties are performed by the Deputy Chairman of Rajya Sabha.

- If the offices of both the President & the Vice-President fall vacant by reason of death, resignation, removal etc the Chief Justice of India or in his absence the seniormost judge of the Supreme Court acts as President.
- For the first time, during the 15-day visit of Dr. Rajendra Prasad to the Soviet Union in June 1960, the then Vice- President Dr. Radhakrishnan acted as the President.
- For the first time, in 1969, when the President Dr. Zakir Hussain died & the Vice-President V.V. Giri resigned, the Chief Justice Md. Hidayatullah acted as President.



### Prime Minister

In the scheme of parliamentary system of government provided by the Constitution, the President is the nominal executive (de Jure) authority & PM is the real executive (de Facto) authority. The President is the head of the State while PM is the head of the government.

### Appointment of the PM

Article 75 says that the PM shall be appointed by the President. The President appoints the leader of the majority party in the Lok Sabha as the PM. But, when no party has a clear majority in the Lok Sabha, then the President may exercise his personal discretion in the selection & appointment of the PM.

### Term

The term of the PM is not fixed & he holds office during the pleasure of the President. So long as the PM enjoys the majority support in the Lok Sabha, he cannot be dismissed by the President. However, if he loses the confidence of the Lok Sabha, he must resign or the President can dismiss him.

### Powers & functions of PM

- He recommends persons who can be appointed as ministers by the President.
- He can recommend dissolution of the Lok Sabha to the President at any time.
- He is the chairman of the NITI Aayog, National Development Council, National Integration Council, Inter-State Council & National Water Resources Council.

### The Union Council of Ministers

As the Constitution of India provides for a parliamentary system of government modelled on the British pattern, the council of ministers headed by the PM is the real executive authority. Article 74 deals with

the status of the council of ministers while Article 75 deals with the appointment, tenure, responsibility, qualification, oath & salaries & allowances of the ministers.

### Note:

The total number of ministers, including the PM, in the Council of Ministers shall not exceed 15% of the total strength of the Lok Sabha (91st Constitutional Amendment Act, 2003)

The council of ministers shall be collectively responsible to the Lok Sabha. A person who is not a member of either House can also become a minister but he cannot continue as minister for more than six months unless he secures a seat in either House of Parliament (by election/ nomination). [Art. 75(5)]

The council of ministers consists of three categories: Cabinet ministers, Ministers of State, & Deputy ministers.

**Cabinet Ministers:** The cabinet ministers head the important ministries of the Central government like home, defence, finance & external affairs.

**Ministers of State:** The ministers of state can either be given independent charge of ministries/departments or can be attached to cabinet ministers.

**Deputy Ministers:** The deputy ministers are not given independent charge of ministries/departments & always assist the Cabinet or State Minister or both. They are not members of the cabinet & do not attend cabinet meetings.

Minister may be taken from members of either House & minister who is member of one House has the right to speak & take part in the proceedings of the other House but cannot vote in the House of which he is not member. [Art. 88]